

IN THE CIRCUIT COURT OF THE
SEVENTEENTH JUDICIAL CIRCUIT, IN
AND FOR BROWARD COUNTY, FLORIDA

ESTRELLAS DEL BEISBOL, S.A. de
C.V., etc.,

Plaintiff,

vs.

LEONYS MARTIN TAPANES, etc.

Defendant.

LEONYS MARTIN TAPANES,

Counter-Plaintiff,

vs.

ESTRELLAS DEL BEISBOL, S.A. de
C.V., etc.

Counter-Defendant.

LEONYS MARTIN TAPANES,

Third Party Plaintiff,

vs.

ELIEZER LAZO, JOEL MARTINEZ
HERNANDEZ, BARTOLO HERNANDEZ
a/k/a BART HERNANDEZ, PRAVER-
SHAPIRO SPORTS MANAGEMENT,
LLC, and GLOBAL SPORTS
MANAGEMENT LLC.,

Third Party Defendants.

**DEFENDANT LEONYS MARTIN'S AMENDED ANSWER, DEFENSES AND
AFFIRMATIVE DEFENSES TO PLAINTIFF'S COMPLAINT AND AMENDED
COUNTERCLAIM AND AMENDED THIRD PARTY COMPLAINT**

Defendant Leonys Martin a/k/a Leonys Martin Tapanes ("Martin") hereby files his
Amended Answer, Defenses and Affirmative Defenses directly to Plaintiff Estrellas Del Beisbol,

S.A. de C.V.'s ("Estrellas")¹ Complaint (the "Complaint"), and responds as follows:

AMENDED ANSWER

(INTRODUCTORY STATEMENT)

Although pled and characterized as a simple breach of contract action between a professional baseball player and a purported baseball training academy, the Complaint is premised upon and wholly depends upon false portrayals of the parties, their respective backgrounds and experiences, and the circumstances of the alleged consummation of the contract that is the subject of the Complaint.

Indeed, the Complaint conveniently fails to include any allegations relating to how the parties (one a supposed, yet unknown and non-existent Mexican baseball training facility; the other a star Cuban baseball player, turned Cuban defector, turned Texas Rangers center fielder) even came to cross paths, let alone execute an agreement that purportedly granted Estrellas (and its conspirators) a total of --\$5.425 MILLION of Martin's total salary over 5 years-- that is because telling the whole story would mean self-incrimination in connection with human trafficking, kidnapping, intimidation and extortion, and would lead to the arrests and convictions of the dozens of "players" involved in and/or who benefitted from this illegal enterprise.²

With this initial elucidation presented at the outset, Martin responds to the Complaint as follows by like-numbered paragraphs:

¹ Martin is using the designation of "Estrellas" for ease of reference purposes, and not because he believes that this purported company actually exists and/or consummated a legal transaction with him. Indeed, as further explained below, there is no entity in Mexico, Florida or elsewhere with the name Estrellas Del Beisbol, S.A. de C.V.'s; there is no professional training camp, facilities or the like associated with Estrellas; and, more importantly, the United States government has recently indicted three individuals, including two of whom are named as third-party defendants herein, for human trafficking, extortion, and kidnapping.

² Not surprisingly, on or about December 5, 2013, the United States Attorney for the Southern District of Florida unsealed a three count federal criminal indictment against Lazo, J.Hernandez and Yilian Hernandez in connection with, among other things, the averments of Martin's Counterclaim and Third Party Complaint.

1. Martin admits that Estrellas has attempted to allege counts for breach of contract, breach of covenant of good faith and fair dealing, and account stated, and that it has alleged a sufficient amount in controversy for purposes of jurisdiction. Martin denies, however, that Estrellas is entitled to any of the relief sought in the Complaint, and further denies any remaining allegations in paragraph 1.

2. Martin denies the allegations contained in paragraph 2. Moreover, Martin states that Estrellas is a non-existent and illegal entity that serves as a front for illicit activity, such as human smuggling and trafficking, kidnapping and extortion.

3. Martin admits the allegations of paragraph 3 of the Complaint for jurisdictional purposes only, but denies that he currently resides at 19 Simonton Circle in Weston, Florida.

4. Martin admits that he signed a document at least similar in form to that attached as Exhibit A to the Complaint (the "Trafficking Document"), but denies that such document is valid or enforceable against him for the reasons set forth in his Defenses and/or Affirmative Defenses, and the Amended Counterclaim/Third Party Complaint below.

5. Martin admits that the Trafficking Document speaks for itself. Martin denies, however, that the Trafficking Document is legal, valid or enforceable.

6. Martin admits that the Trafficking Document speaks for itself. Martin denies, however, that the Trafficking Document is legal, valid or enforceable.

7. Martin admits that the Trafficking Document speaks for itself. Martin denies, however, that the Trafficking Document is legal, valid or enforceable.

8. Martin admits that the Trafficking Document speaks for itself. Martin denies, however, that the Trafficking Document is legal, valid or enforceable.

9. Martin admits the allegations of paragraph 9 of the Complaint.

10. Martin admits that his contract with the Texas Rangers (the "Rangers Contract") speaks for itself, but denies any allegations in paragraph 10 that are inconsistent therewith.

11. Martin admits that the terms of his signing bonus with the Texas Rangers speak for themselves, but denies any allegations in paragraph 11 that are inconsistent therewith.

12. Martin denies the allegations of paragraph 12 as written. Martin admits that while in the involuntary custody of his kidnappers consisting of, among others, Eliezer Lazo ("Lazo") and Joel Martínez Hernandez ("J.Hernandez"), he was provided with food, clothing and shelter, and that he was provided with intermittent opportunities to practice baseball, which he had already been playing since a young child. Additionally, upon information and belief, Martin admits that his "family" was provided with food, clothing and shelter while in the involuntary custody of, among others, Lazo and J.Hernandez.

13. Martin denies the allegations of paragraph 13 as written. Martin admits that as part of the illegal enterprise operated by, among others, Lazo and J.Hernandez, and Bartolo Hernandez a/k/a Bart Hernandez ("B.Hernandez"), B.Hernandez was presented to Martin as a baseball agent who could assist Martin in potentially obtaining a Major League Baseball ("MLB") contract. However, at no time was there any negotiation with anyone, and Martin did not voluntarily agree to have B.Hernandez represent him or sign any agreement of any nature with B.Hernandez.

14. Martin denies the allegations of paragraph 14.

15. Martin denies the allegations of paragraph 15 as written. Martin admits that in or about June 2011, he authorized a wire transfer purporting to be remitted to Estrellas in the amount of \$1,350,000. Martin further states, however, that the payment was made out of fear for

himself and his family, and not with any intention of validating, ratifying or otherwise recognizing the legal existence or enforceability of the Trafficking Document.

16. Martin admits that he is being compensated pursuant to the terms of the Rangers Contract; he denies, however, that any monies are owed to Estrellas or anyone else under the Trafficking Document or otherwise.

17. Martin admits that he is being compensated pursuant to the terms of the Rangers Contract; he denies, however, that any monies are owed to Estrellas or anyone else under the Trafficking Document or otherwise.

18. Martin denies the allegations of paragraph 18.

19. Martin admits that he will not pay Estrellas any other or further sums under the Trafficking Document or otherwise. Martin denies all remaining allegations of paragraph 19.

20. Martin admits that he is being compensated pursuant to the terms of the Rangers Contract; he denies, however, that any monies are owed to Estrellas or anyone else under the Trafficking Document or otherwise.

21. Martin denies the allegations of paragraph 21.

22. Martin denies the allegations of paragraph 22.

23. Martin is without sufficient information or knowledge to form a belief as to the truth of the allegations contained in paragraph 23, and therefore, denies same.

Count I – Breach of Contract

24. Martin adopts and realleges its previous responses to the respective paragraphs referenced in paragraph 24, as if set forth fully herein.

25. Martin denies the allegations contained in paragraph 25.

26. Martin denies the allegations contained in paragraph 26.

27. Martin denies the allegations contained in paragraph 27.

28. Martin denies the allegations contained in paragraph 28.

Martin denies that Estrellas is entitled to any of the relief sought in the unnumbered “Wherefore” clause following paragraph 28 of the Complaint.

COUNT II- Breach of Implied Covenant of Good Faith & Fair Dealing

29. Martin adopts and realleges its previous responses to the respective paragraphs referenced in paragraph 29, as if set forth fully herein.

30. Martin denies the allegations contained in paragraph 30.

31. Martin denies the allegations contained in paragraph 31.

32. Martin is without sufficient information or knowledge to form a belief as to the truth of the allegations contained in paragraph 32, and therefore, denies same.

33. Martin denies the allegations contained in paragraph 33.

34. Martin denies the allegations contained in paragraph 34.

35. Martin denies the allegations contained in paragraph 35.

Martin denies that Estrellas is entitled to any of the relief sought in the unnumbered “Wherefore” clause following paragraph 35 of the Complaint.

COUNT III – Account Stated

36. Martin adopts and realleges its previous responses to the respective paragraphs referenced in paragraph 36, as if set forth fully herein.

37. Martin denies the allegations contained in paragraph 37.

38. Martin denies the allegations contained in paragraph 38.

39. Martin denies the allegations contained in paragraph 39.

Martin denies that Estrellas is entitled to any of the relief sought in the unnumbered "Wherefore" clause following paragraph 39 of the Complaint.

AMENDED DEFENSES AND/OR AFFIRMATIVE DEFENSES³

First:

Lack of Contract Formation Due to Illegality/Violation of Public Policy

40. As discussed above and in further detail in Martin's Amended Counter-Claim/Third Party Complaint, the Trafficking Document arose in connection with an illegal scheme by Lazo, J.Hernandez, B.Hernandez and others (under the guise of Estrellas) to smuggle Martin and his family out of Cuba into Mexico, and to hold Martin hostage in Mexico and his family hostage in Miami until such time as Martin obtained a MLB contract, and could pay them a ransom for their release.

41. The actions of Lazo, J.Hernandez, B.Hernandez and their co-conspirators (via Estrellas) were in violation of the laws of Cuba, Mexico and the United States. Moreover, the Trafficking Document was presented to and signed by Martin while being held against his will in Mexico and while his family remained held hostage in a residence owned by Lazo in Miami, Florida.

42. Under the circumstances, no valid contract was or could have been formed between Martin and Estrellas as a matter of law on the basis that Estrellas intended to consummate an illegal contract and/or one in violation of the public policies embodied in, among others, the anti-trafficking, anti-kidnapping and anti-extortion laws of Mexico and the United States.

³ Martin incorporates in his amended defenses and/or affirmative defenses paragraphs 1 through 93 of his Amended Counterclaim and Amended Third Party Complaint, *infra*.

Second:
Lack of Contract Formation Due to Duress

43. At the time Martin was forced to sign the Trafficking Document, he was being held hostage by (or at the behest of) Lazo, J. Hernandez, B.Hernandez, and their co-conspirators (some of whom were armed with guns), and while his family members were being held captive in a residence belonging to and occupied by Lazo in Miami, Florida.

44. Fearing for his safety and the safety of his family members, Martin had no choice but to sign the Trafficking Document. Martin's execution of the Trafficking Document was not of his own free will, at a time when the circumstances permitted no other alternative, and as a result of the coercive acts of his kidnappers.

45. As a result, no valid contract was or could have been formed on the basis of duress.

Third:
No Enforceable Contract Due to Illegality/Violation of Public Policy

46. To the extent that Estrellas can demonstrate the existence of a binding contract with Martin, such contract is nevertheless unenforceable because any performance thereunder would be in furtherance of illegal activities and/or in violation of established public policies against human trafficking, extortion, and kidnapping in that it arose in the context of a scheme to smuggle Martin and his family out of Cuba into Mexico and ultimately into the United States, which scheme involved further illegal activities such as kidnapping and extortion as explained in detail below in Martin's Amended Counterclaim/Third Party Complaint.

Fourth:
No Enforceable Contract Due to Procedural Unconscionability

47. To the extent that Estrellas can demonstrate the existence of a binding contract with Martin, such contract is nevertheless unenforceable on the basis of procedural

unconscionability in that the Trafficking Document was executed under circumstances in which there existed a huge inequality of bargaining power between Estrellas and Martin.

48. Specifically, at the time of execution of the Trafficking Document, Martin was being held against his will by Lazo and J.Hernandez; Martin was not given a choice of whether or not to sign the Trafficking Document (especially considering that he was being held in a hotel with armed gunmen at the time); Martin did not have the ability to obtain any legal or other professional representation or advice; Martin was not able to negotiate any of the terms of the Trafficking Document; and, most importantly, Martin knew that his family was being held captive thousands of miles away in Miami, Florida, and that the refusal to execute the Trafficking Document would have subjected himself and/or his family members to physical harm or even death.

49. Based upon the foregoing, Estrellas (to the extent it even legally exists) gained an unjust and undeserved advantage over Martin, which it would be inequitable to permit Estrellas to enforce.

Fifth:
No Enforceable Contract Due to Substantive Unconscionability

50. To the extent that Estrellas can demonstrate the existence of a binding contract with Martin, such contract is nevertheless unenforceable on the basis of substantive unconscionability.

51. Specifically, in the “usual” professional baseball situation, an agent is paid five percent (5%) of a player’s MLB contract. However, the Trafficking Document requires Martin to pay a total of 35% of his salary, an amount 7 times greater than is normal and customary in the industry. Moreover, such amount is deemed owed under the Trafficking Document even though

Estrellas was and is not a baseball training academy, and did not provide professional baseball-related services of the nature usually provided by professional training academies.

52. As a result, it would be inequitable to permit Estrellas (to the extent that it even legally exists) to enforce the Trafficking Document (or, at most, to allow it to be enforced beyond the usual 5%--more than which has already been paid by Martin).

Sixth:

No Enforceable Contract Due to Violation of MLB Players Association Rules

53. Even in a light most favorable to Estrellas, and putting aside the illegal context in which it arose, the Trafficking Document may be considered akin to an agency agreement to represent Martin in connection with possibly obtaining a MLB contract.

54. Martin is a professional baseball player and a member of the MLB Players Association (the "MLBPA").

55. Under the governing MLBPA rules, any agent acting on behalf of a baseball player must file an agency designation form with the association. At no time did Estrellas, Lazo, J. Hernandez, B.Hernandez, GSM, or PSSM or anyone else involved in the illegal trafficking enterprise file any papers with the MLBPA regarding Martin.

56. As such, the Trafficking Document is unenforceable against Martin.

Seventh:

No Enforceable Contract Due to Failure of Consideration

57. According to the terms of the Trafficking Document, Estrellas was supposed to be a professional baseball training academy with equipment, facilities, and experienced personnel. However, as further explained below, the "training academy" was nothing more than a two-bedroom house in the middle Central Mexico where Lazo and J.Hernandez held their kidnap victims hostage. And even though essentials were provided to Martin during his multi-month stay, by no means were services of the nature referenced in the Trafficking Document provided

(or even available). As a result, there was a total lack of consideration on Estrellas's part, and any further performance under the Trafficking Document by Martin should be excused.

**Eighth:
Unclean Hands**

58. Because the Trafficking Document arose in the context of, and in furtherance of, an illegal enterprise operated by Lazo, J.Hernandez, B.Hernandez and others (under the guise of Estrellas), Estrellas comes before this Court with unclean hands, and should be denied the opportunity to enforce the Trafficking Document or to otherwise seek any form of compensation against Martin.

**Ninth:
Full Performance by Martin**

59. To the extent that Estrellas actually performed any legitimate services on behalf of Martin, Estrellas has been more than fully compensated via the \$1,350,000 in funds wired to an account in the name of Estrellas in June 2011, which amount constitutes almost 9% of the amount of the Rangers Contract, and not even taking into account the additional \$225,000 that Martin separately paid to B.Hernandez and his "colleagues" for agent services. Therefore, Martin has more than tendered full performance to Estrellas (and its cronies) and owes Estrellas no further legal obligations.

**Tenth:
No Breach of Implied Covenant**

60. Because the Trafficking Document is invalid and/or unenforceable, Estrellas's claim for breach of implied covenant of good faith and fair dealing fails as a matter of law.

61. Indeed, a claim for a such breach of implied covenant can exist only in connection with a valid and enforceable contract, and only when tied to a specific provision of that contract.

As no valid or enforceable contract exists, similarly no claim for breach of implied contract can be properly maintained.

**Eleventh:
No Account Stated**

62. Estrellas fails to state a claim for account stated because any alleged account or "transaction" between Martin and Estrellas was either illegal in and of itself or arose in connection with an illegal enterprise. Accordingly, there is no valid "account" upon which any collection can be based.

WHEREFORE, Martin respectfully prays that this Court will dismiss the Complaint with prejudice, or alternatively, enter a judgment in his favor and enter an order allowing Martin to recover his costs and expenses incurred herein. Additionally, as Estrellas is seeking to enforce the purported attorneys' fees provision contained within the Trafficking Document, Martin is entitled to an award of his attorneys' fees in connection with the Complaint pursuant to Florida Statutes section 57.105(7).

AMENDED COUNTERCLAIM & AMENDED THIRD PARTY COMPLAINT⁴

Counter-Plaintiff and Third Party Plaintiff Leonys Martin a/k/a Leonys Martin Tapanes ("Martin") hereby sues Counter-Defendant Estrellas Del Beisbol, S.A. de CV ("Estrellas"), and Third Party Defendants Eliezer Lazo ("Lazo"), Joel Martinez Hernandez ("J.Hernandez"), Bartolo Hernandez a/k/a Bart Hernandez ("B.Hernandez"), Praver-Shapiro Sports Management, LLC ("PSSM"), and Global Sports Management LLC ("GSM"), and alleges:

⁴ For purposes of brevity and to avoid repetition and redundancy in the general allegations, Martin brings his Amended Counter-Claim and Amended Third Party Complaint via one joint caption. However, consistent with the requirements of the Florida Rules of Civil Procedure, the claims against Estrellas are separately identified and pled from those against the third parties.

Introductory Statement

And now the rest of the story⁵ Practically hitting a ball before he could spell baseball, Martin was born, bred and raised to play baseball. From the tender age of 5, Martin ate, drank and slept baseball, literally practicing a minimum of 4 hours a day, at least 5 days a week with his father/trainer/mentor/manager/coach, Oscar Martin ("O.Martin").

Unfortunately, however, Martin was born in a closed-off land (Cuba), at a time when the only way to truly play the sport you love was to eventually leave for other lands.⁶ Even more unfortunate is Martin's ill-fated (and suspiciously "coincidental") meeting with the relative of a human trafficker; a relationship that did eventually get him out of Cuba and into the United States, but not before Martin and his family underwent a harrowing experience.

Despite the indisputable history described below, Martin's traffickers turned kidnappers want the Court to believe that Martin's success was due to the supposed efforts of Estrellas, and that they are entitled to over \$5.4 million dollars over 5 years (a total of 35% of Martin's Major League Baseball ("MLB") contract with the Texas Rangers (the "Rangers Contract").

What they did not tell is that Martin's journey from Cuban superstar to Major League hopeful actually involved kidnapping, coercion and intimidation, and almost 7 months of forced familial separation that did not end before or until Martin finally landed the Rangers Contract.

Although emotionally, physically and psychologically draining at times, Martin's journey thankfully did not end in torture, maiming, or death as it apparently did with others looking to leave Cuba for a better life and who unfortunately got caught up with the notorious, surreptitious and illegal enterprise called Estrellas.

⁵ With full credit to the beloved and departed Paul Harvey.

⁶ Indeed, since the early-1990's Castro's Cuba lost no less than 70 Cuban baseball players to the United States, where the opportunities to develop and progress into a superstar appear unlimited.

Jurisdiction And Parties

1. This action seeks a declaratory judgment pursuant to Chapter 86, Florida Statutes, and brings claims for damages in excess of \$15,000.00, exclusive of interest, costs and attorneys' fees. Therefore, this Court has subject matter jurisdiction.

2. Venue is appropriate in Broward County, Florida based upon the main Complaint in this action and because some of the individual defendants reside in Broward County, Florida.

3. Martin is a permanent American resident domiciled in Broward County, Florida, and is otherwise *sui juris*.

4. Estrellas is a purported Mexican company allegedly having a principal place of business in Cancun, Mexico. Upon information and belief, Estrellas is not lawfully existing in any jurisdiction, including Mexico, and is a front for the illegal human trafficking of Cuban citizens, focusing on internationally-recognized Cuban baseball players. Personal jurisdiction may be exercised over Estrellas as per the Complaint filed by Estrellas in this action.

5. Upon information and belief, Lazo is a Cuban national lawfully residing in the United States, and having his principal residence in Miami-Dade County, Florida. Lazo is currently serving a 53-month federal prison term in Mississippi based upon a multi-count Medicare fraud and money laundering conviction, and is otherwise *sui juris*.

6. Upon information and belief, J.Hernandez is a Cuban national lawfully residing in the United States, and having his principal residence in Miami-Dade County, Florida. J.Hernandez is currently serving an 84-month federal prison term in Mississippi based upon a multi-count Medicare fraud and money laundering conviction, and is otherwise *sui juris*.

7. Upon information and belief, B.Hernandez is a resident of the State of Florida, domiciled in Broward County, Florida. B.Hernandez is an employee or agent of PSSM, as well as the managing member of GSM, and is otherwise *sui juris*.

8. PSSM is a limited liability company organized and existing under the laws of the State of Florida, having its principal place of business in Miami-Dade County, Florida, and operating throughout the State of Florida and elsewhere.

9. GSM is a limited liability company organized and existing under the laws of the State of Florida, having its principal place of business in Broward County, Florida, and operating throughout the State of Florida and elsewhere.

Common Allegations

A Future Superstar is Born and Bred

10. On March 6, 1988, Martin was born to O.Martin & Amerillas Tapanes in Corralillo, a small City in the Central Cuban province of Villa Clara. Having earned a degree in physical education from the University of Villa Clara, O.Martin cherished having a son who he could teach the beloved Cuban pastime of baseball.

11. At the age of five, O.Martin began to teach Martin baseball, spending a minimum of four hours a day teaching his son how to play the game.

12. By the age of nine, Martin was already showing great potential, even being selected to participate in an international tournament in Mexico. At 11, Martin was then invited by the Cuban government to attend an international tournament in Japan.

13. Martin's training with his father continued until Martin reached 12 years old. At that time he was asked by a group of Cuban baseball scouts to attend a School of Sports Initiation (commonly referred to as EIDES in Cuba), where he could continue to hone the skills already learned.

14. Martin's attendance at EIDES was a huge success, earning Martin an invitation to attend one of the only 13 or so prestigious Escuelas Superior de Perfeccionamiento Atlético

(ESPA or High Schools of Athletic Perfection) at the age of 15. Martin attended the ESPA until he reached 17.

15. Upon graduation from ESPA, in 2005, Martin was drafted into the Cuban National Series (the “CNS”) by the Central Cuba Provincial Team.

16. As a member of the CNS, Martin played other provincial teams across the country, and also got the opportunity to travel internationally to represent Cuba in numerous baseball tournaments and championships.

17. By 2010 (at the age of 22), Martin was recognized as an elite Cuban baseball player, having appeared in the 2006 World Junior Baseball Championship, the 2009 World Port Tournament, the 2009 World Baseball Classic, and the 2010 World Junior Baseball Championship, in addition to earning a .326 batting average for the 2009-10 season, and an overall .314 career batting average in the CNS.

The Superstar Seeks a Better Life

18. Although committed to his team and the CNS, Martin realized that his full baseball potential would never be realized in Cuba, where resources and opportunities were sparse. After almost two years of toiling with the idea, in or about August 2010, upon his return from the World Junior Baseball Championship in Japan, Martin made up his mind to leave Cuba for America.

19. Toward that end, Martin, via a contact he had in Miami through a friend of his in Cuba, arranged for himself, and his father, his girlfriend, and his father’s girlfriend (collectively, “Martin’s family” or “his family”), to leave Cuba via a charter boat destined for Mexico. Once in Mexico, the group would seek entry into the United States, and ultimately travel to Miami to meet the contact that would hopefully help Martin break into the major leagues.

20. On a mid-August 2010 evening, Martin finally received the call that it was time to leave for Havana, where he and his family would catch a charter boat to Mexico. With no more than an hour to prepare, Martin and his family packed a backpack and left in a car for Havana along with his friend.

21. Following hours of driving utilizing two different vehicles, Martin and his group arrived in Havana, where they were to then walk to a designated launch site on the coast. Although he believed that only the five of them were to slated to board the anticipated vessel, Martin arrived at the drop-off site where approximately 20 other people were waiting to travel.

22. Included in those 20 or so people was an individual named Jesus Toledo ("Toledo"), who appeared as though was attempting to escape Cuba as well.

23. Unbeknownst to Martin at the time, Toledo was actually a relative of one of Lazo's family members who, upon information and belief, was tasked with convincing Cuban baseball players like Martin to escape from Cuba on a vessel designated and controlled by Lazo.

24. From the drop-off site, Martin and the others began to walk with a guide called "El Capo," looking for the boat pick-up site. Despite walking for hours, the site was never found, and Martin and his family were eventually separated from El Capo.

25. Martin and his family ultimately walked to a house located near the coast, where they were fed and permitted to use the phone so that Martin could call his contact to come pick them up and take them home.

26. Several days later, Martin received a call from his contact that another trip had been scheduled, and that Martin and his family needed to come back to Havana. Martin and his family returned to Havana, where they waited approximately 4 days until they were advised that the vessel was coming back to port. They then returned to the original drop-off point.

27. When they arrived, waiting for them was El Capo with a truck holding approximately 24 people in it. Also there was Toledo, who told Martin that there was another way to escape that was much safer. Not wanting to board the already overcrowded truck, Martin and his family agreed to go to Toledo's house (via Toledo's father, who picked them all up).

28. At Toledo's house, Toledo advised that he had a cousin in Miami who could get them out of Cuba. Martin and his family spent a day at Toledo's house and then agreed to leave Cuba via Toledo's Miami cousin.

29. The journey to Toledo's designated location was not a simple one: indeed, it involved a car ride, followed by a truck ride, and then several hours of walking to the coast (while being led by two men on horses carrying machetes).

30. Finally, at approximately 8:30 at night, the entire group arrived at the coast, where they waited for approximately 5 hours until a forty-five foot yacht arrived with two men on board, referred to as "El Gago" and "El Guagiro."

31. Upon the boat's arrival, everyone jumped into the water and then boarded the vessel.

32. Shortly thereafter, the boat left shore and traveled approximately 5 hours to La Isla de la Juventud (the Island of Youth), off the coast of Cuba. The boat remained anchored until approximately 2 p.m. that afternoon, and then headed to Cancun.

33. After an additional several hours at sea, the yacht approached a port in Cancun, Mexico. In the darkness, Martin could see a dark colored van and he also noticed someone unlocking the port fence and directing the yacht to dock.

34. Once at port, everyone got into the van driven by "El Negro," a dark-skinned, armed individual who was believed to be Mexican, and they arrived at a large house approximately 15 minutes from the port.

Martin is the Golden Goose Who Will Not Be Let Go

35. At the house, two individuals holstering weapons, later identified as Lazo and J.Hernandez, were waiting.

36. Martin and the rest of the group entered the house and noticed a number of rooms lined with mattresses, some of which were already occupied by others. Indeed, upwards of 30 people were already occupying the premises, including at least three other baseball Cuban baseball players that Martin recognized and several players' wives.

37. At the house, everyone was provided with food and drink and also shampoo. After several hours, Martin approached Lazo to ask what was going to happen to them. Lazo responded that Martin belonged to him, and stated, "You are worth a lot; I am not going to let you go."

38. Martin, although fearful, retorted that he had a friend in Miami who was going to take him to America. Lazo lashed back that the friend would have to pay him (Lazo) \$2,500,000 in order for Martin to be let go.

39. Martin then offered Lazo \$10,000 for each of himself and his family, and Lazo struck back, "No, you pay me everything."

40. A day or so later, Lazo, J.Hernandez and El Negro, all armed, shuttled Martin, his family and about five others from the large house to a one bedroom apartment in Cancun, where they were all locked in.

41. Upon exiting the apartment, J.Hernandez remarked to everyone, “If I get upset, bad things could happen.”

42. On about the 4th day in the apartment, approximately 8 men, some armed with guns, broke into the apartment to try to take the occupants, including Martin and his family. Ultimately Lazo and J.Hernandez squashed the attempt through the believed use of force. Thankfully, none of the occupants was harmed, but Lazo knew he had to relocate them

43. Thus, Lazo moved everyone from the destroyed apartment to the a hotel, where they spent one night; they were ultimately brought to a secluded house in Cancun, believed to be owned by El Negro’s boss, and already occupied by three other Cuban baseball players.

44. At that time, Lazo left, leaving J.Hernandez in charge of the continued operation.

Divide and Conquer—The Players are Separated From Their Families

45. After more than a week in the Cancun house, J. Hernandez took Martin and the other baseball (via airplane) from the house in Cancun to a small, desolate field containing a two-bedroom, two-bath house with a pool and two dogs, and a smaller house located behind it in Monterey, Mexico (referred to as “the Ranch”).

46. The Ranch was not a sports facility or a training facility; it had no gym, no workout equipment, no baseball equipment, no baseball field, no trainers, and no coaches. In fact, it had no facilities or amenities of any nature other than usual household kitchen and bathroom facilities and the pool.

47. Upon arrival at the Ranch, the players were met by a man named Anthony Velazquez, who went by the name “Tony Montana.” Like J.Hernandez, Tony carried a gun.

48. While the players were off to Monterey, their family members remained at the secluded house for approximately another week. Then, they were flown by plane from Cancun

to Monterey, where they were permitted to see their families for two days (one day at a hotel and one day at the Ranch, where they were all given fake passports by Lazo).

49. After the two days, the family members were placed on a bus to the Mexican border, across from Laredo, Texas, at which time they crossed the border, spent approximately two days in detainment with U.S. Immigration and Customs officials, and then were released.

50. The individuals, including Martin's family, then boarded a Greyhound bus for Miami, where they were picked up by Lazo and his son and brought to Lazo's house at 7803 NW 165th Street in Hialeah.

51. Unbeknownst to Martin's family, they were to remain at Lazo's house without their consent or approval for almost 6 months, during which time they were not permitted to leave except on occasion for grocery shopping and doctors' visits. In any event, leaving was not a reality because Martin's family knew that Martin was still being held in captivity in Monterey, and they feared for his life (and their own) if they attempted to leave.

52. In the meantime, Martin and the other baseball players remained on the Ranch against their will and without any indication as to when they would be able to leave or what was ultimately going to happen to them.

53. From time to time, the players would be transported from the Ranch to a nearby college baseball stadium where they would "train" with an individual named Miguel Valdez, who was retained by Lazo.

54. Because they were all professional Cuban baseball players, they did not need or request "training"; rather, they simply wanted to be released so that they could cross into the United States where they could be reunited with their families and also seek potential MLB opportunities.

55. Nevertheless, they remained held in Monterey against their will while Lazo (or one of his thugs) brought baseball scouts from the United States to come watch them play.

56. At some point while at the Ranch, Lazo brought B.Hernandez to the Ranch, telling the players that he (B.Hernandez) was a professional baseball agent, and that they were all being represented by B.Hernandez.

57. No negotiations were had with B.Hernandez by any of the players, and no other agents or options for potential agents were presented. Additionally, no contract or other agreement for B.Hernandez's services was presented.

58. Nevertheless, Martin had no choice but to go along. Indeed, under the circumstances, Martin certainly did not have the ability to object, considering that he was being held involuntarily in Monterey while his family was being held involuntarily in Miami, at Lazo's house of all places.

59. Although this was Martin's first introduction to or involvement with B.Hernandez, upon information and belief, B.Hernandez was and is an integral part of Estrellas.

The Illegal Scheme is Documented

60. After additional time at the Ranch, Martin and the others were moved to a hotel, where Tony kept watch on them, because Lazo claimed that someone was trying to kidnap him.

61. While at the hotel, Tony brought an individual called "Ballito" to meet with the players. Ballito, who was introduced as a lawyer, gave each of the players a several page document purporting to be a contract with an entity called "Estrellas Del Beisbol" (the "Trafficking Document"). A copy of the Trafficking Document purportedly signed by Martin, which was not provided to Martin until approximately a year after it was purportedly signed, is attached hereto as Exhibit "A."

62. According to the Trafficking Document, Estrellas was to receive thirty percent (30%) of Martin's first professional baseball contract, and Martin's "agent" was to receive an addition five percent (5%), in exchange for various baseball-related services supposedly to be provided by Estrellas.

63. On its face, the Trafficking Document could appear to be a legitimate contract for services with a legitimate baseball training organization. However, the Trafficking Document is actually extremely deceptive and misleading, unconscionable, and replete with false statements regarding the provision of supposed services by Estrellas, an entity that Martin never heard of or previously agreed to do business with, and which does not actually exist in Mexico, Florida, or elsewhere.

64. Moreover, even if Estrellas was somehow legitimate, Martin did not need training services at a cost of 30% of any contract he would potentially receive as he was already a well-trained, well-recognized, and well-respected Cuban baseball player who had been playing since he was five years old, who had attended two prestigious athletic schools in Cuba, and who had been representing Cuba in international baseball play since he was 9 years old.

65. Regardless of whether the purported services were needed or not, Martin (as was case with the other baseball players with him) had no choice but to sign the Trafficking Document, considering that he was being held hostage by Tony at the direction of Lazo, that Tony had at least one weapon, and that his family was being held hostage by Lazo thousands of miles away.

66. Indeed, Martin feared that if he did not sign the Trafficking Document that his family would be harmed.

67. In other words, the execution of the Trafficking Document by Martin was not of his own freewill or volition; rather it was coerced under extreme fear and duress.

68. Shortly after Trafficking Document was signed by Martin, B.Hernandez took Martin to Guatemala to try to get Martin a copy of his Cuban passport so that he (Martin) could eventually enter the United States.

69. B.Hernandez and Martin appeared at the Cuban Embassy in Guatemala on two separate occasions, each time being denied what they were seeking. Additionally, Martin was denied Guatemalan residency.

70. Finally, after almost two months in Guatemala, B.Hernandez returned Martin to the Ranch where J.Hernandez was then staying once again.

The Golden Goose Lays a Golden Egg

71. Once back at the Ranch, Martin was taken to a baseball stadium located approximately 25 minutes away, where scouts from several MLB teams were in attendance.

72. After playing ball against the Mexican baseball team, Martin received several offers from differing MLB teams.

73. Ultimately, in early-2011, Martin agreed to accept a proposed offer from the Texas Rangers.

74. Once the oral offer was communicated and accepted by Martin (with confirmation that it would be signed by the Rangers once Martin was in the United States), Martin boarded a bus with J.Hernandez to the Mexican border.

75. While on the bus, J.Hernandez advised that they were headed to the United States border, and instructed that once they got there, Martin was to cross the border, and to tell the

authorities that he wanted asylum, that he entered Mexico via a flight from Belize, and that he lost his Cuban passport.

76. Once at the border, J.Hernandez (who could lawfully enter into the United States) separated from Martin, entered the United States, and then took a taxi to a nearby hotel in Laredo, Texas.

77. Meanwhile, Martin crossed the border, showed his Cuban birth certificate and driver's license, said he lost his Cuban passport and then was detained by Immigrations and Customs for almost two days while he was processed and then ultimately released.

78. Once released, J.Hernandez then took Martin back to the hotel to clear out his belongings, and went to the Laredo airport, where they flew together from Laredo to Houston and ultimately to Miami.

79. In Miami, J.Hernandez and Martin were met by Lazo, Lazo's girlfriend, Lazo's daughter, and Martin's family members. From the airport, they all went back to Lazo's house, where they all stayed until Martin and his family were finally permitted to leave to go into a townhome in Weston that was rented by Lazo (and, thus, ultimately under the control of Lazo).

80. Although they were technically "free" at this point, Martin and his family knew no one, spoke almost no English, did not understand their legal rights, if any, and were afraid because Lazo and his goons knew exactly where they were living.

Easy Access to Martin's Money is Established

81. In early-May 2011, Martin and the Texas Rangers signed Rangers Contract, a five-year deal paying Martin a total of \$15.5 million, including a \$5 million signing bonus payable in two installments (first, after the MLB Commissioner approved the Rangers Contract, and second in February 2012).

82. Once settled in Weston, B.Hernandez took Martin to meet George Perez of Merrill Lynch in Miami ("Perez"), and B.Hernandez told Martin that Perez would manage his finances.

83. A few weeks later, Martin received his first signing bonus payment under the Rangers Contract, which he promptly turned over to Perez as instructed by B.Hernandez. Shortly thereafter, Martin received a document from Perez, written solely in English, which authorized Perez to transfer \$1,350,000 of Martin's money to an account in South America purportedly belonging to Estrellas.

84. Because Martin was playing baseball out of town at the time, and he was scared of what might happen to his family members if he did not sign, he authorized his girlfriend to sign on his behalf and to return the signed authorization to Perez. A true and correct copy of the signed authorization is attached hereto as Exhibit "B."

85. Around that same time, Martin received an invoice for services from PSSM in the amount of \$225,000.00. Although Martin had met Barry Praver of PSSM ("Praver") after entering the United States, he did not have any agreement or arrangement with Praver or PSSM, was never told that B.Hernandez had an affiliation with PSSM, or that B.Hernandez was not actually permitted to negotiate MLB contracts without an affiliation with a fully-certified players' agent, such as Praver.

86. Nevertheless, Martin authorized Perez to remit payment to PSSM in the amount of \$225,000 due to fear for himself and his family.

Martin Refuses to Be a Victim Any Longer

87. Although Martin had realized that he and his family were kidnapped and held for ransom (the ransom being 35% of the Rangers Contract he ultimately signed), Martin remained

fearful of not going along with everything that Lazo, J.Hernandez, and B.Hernandez instructed him to do.

88. However, that fear somewhat subsided in or around November 2011, when Martin began speaking to others involved in baseball who were not connected to Lazo, J.Hernandez, or B.Hernandez.

89. As a result, Martin proceeded to retain a certified baseball players' agent as well as legal counsel, and decided that no further monies would be paid to the perpetrators. In fact, the \$1,575,000 he had already paid via Perez constituted over 10% of the value of the Rangers Contract, which was in excess of the normal and customary 5% charged baseball players by their legitimate agents.

90. In or about February 2012, counsel purportedly representing Estrellas and B.Hernandez began demanding additional payments from Martin under the Trafficking Document. Martin has refused to pay any additional payments, knowing that he had been taken advantage of against his will, deprived of his freewill, and having already compensated his perpetrators more than an sufficient amount considering their illegal and dangerous activities.

91. In the midst of these demands, in March 2012, Lazo, who was likely the lead conspirator, was sentenced to 53 months in federal prison for Medicare fraud and money laundering convictions. Meanwhile, back in June 2011, J.Hernandez had been sentenced to 84 months in federal prison in connection with the same crimes.

92. After such time, Martin receiving veiled threats from Lazo (from prison and via Lazo's family members living in South Florida), as well as numerous statements and demands on behalf of Estrellas, and PSSM and GSM, two entities with which Martin never had any relations, and never formalized any agreement.

93. To date, despite the illegal nature of the Trafficking Document, and the lack of any agreement with either PSSM or GSM, Estrellas continues to seek millions of dollars in alleged current and future amounts allegedly owed, and PSSM and GSM seek an additional \$1,000,000 or so in total compensation.

94. Martin has retained the undersigned law firm to defend him in this action, and has agreed to pay such counsel a reasonable fees for its services rendered.

95. All conditions precedent to instituting this counterclaim/third party complaint have occurred, been performed or waived.

**Count I-Declaratory Judgment
(Against Estrellas, Lazo, J.Hernandez & B.Hernandez)**

96. Martin repeats and realleges paragraphs 1 through 95 above, as if fully set forth herein.

97. As detailed above, the Trafficking Document arose in conjunction with the illegal activities of human trafficking and kidnapping, at a minimum. Additionally, it was executed by Martin under circumstances rendering his freewill completely null, and leaving him with no choice but to sign. Lastly, and in addition to those wholly egregious circumstances, the terms of the Trafficking Document are patently unconscionable.

98. Nevertheless, Estrellas (and, at a minimum, Lazo on behalf of his conspirators) has continued to demand payment in full of all amounts supposedly owed under the Trafficking Document, and has filed this lawsuit to enforce the terms thereof.

99. As a result, Martin is in doubt as to his rights and obligations with respect to the Trafficking Document and the \$1,575,000 he already paid thereunder. Accordingly, there is an actual, bona fide and justiciable controversy existing between he and Estrellas and the individuals who comprise the illegal enterprise.

100. Pursuant to Chapter 86, Florida Statutes, this Court is empowered to declare the Trafficking Document illegal and/or unenforceable, and to grant supplemental relief as required in connection with such declaration.

WHEREFORE, Martin demands judgment against Estrellas (and the individuals who own and/or operate it, Lazo, J.Hernandez and B.Hernandez) declaring the Trafficking Document void *ab initio* and of no legal effect; for money damages Estrellas, Lazo, J.Hernandez and B.Hernandez, jointly and severally, as supplemental relief in the amount of \$1,575,000 paid by Martin, plus prejudgment and post-judgment interest, and costs; and granting such other and further relief as the Court may deem just and proper. Additionally, as Estrellas is seeking to enforce the purported attorneys' fees provision contained within the Trafficking Document, Martin is entitled to an award of his attorneys' fees in connection with this Count pursuant to Florida Statutes section 57.105(7).

**Count II-Declaratory Judgment
(Against B.Hernandez, PSSM and GSM)**

101. Martin repeats and realleges paragraphs 1 through 95 above, as if fully set forth herein.

102. As detailed above, Martin was forced to have B.Hernandez "represent" him as part of the illegal scheme culminating in the Trafficking Document. For any legitimate/legal efforts undertaken by B.Hernandez, GSM or PSSM, they have already been paid a total of \$1,575,000 dollars by Martin.

103. Although Martin did sign the Trafficking Document and was forced to use the services of B.Hernandez, he never signed or otherwise entered into any arrangement with B.Hernandez, PSSM or GSM.

104. Nevertheless, because B.Hernandez is apparently an employee (or agent) of PSSM, and is also a managing member of GSM, these entities are now both seeking compensation from Martin, as indicated by the MLB Player's Association Grievance they previously submitted for mandatory arbitration (the "Grievance"), a copy of which (without exhibits) is attached hereto Exhibit "C."

105. To the extent any supposed relationships with B.Hernandez, PSSM and/or GSM arose vis-à-vis the Trafficking Document, such relationships are unenforceable for the same reasons the Trafficking Document itself is unenforceable.

106. Conversely, to the extent that any supposed relationships arose outside of the Trafficking Document (and/or the circumstances related thereto), Martin never voluntarily entered into any relationship with them whatsoever, oral or written.

107. Nevertheless, B.Hernandez, PSSM and GSM have continued to demand payment of all amounts supposedly owed to them, and PSSM and GSM filed the Grievance to enforce their supposed rights.

108. As a result, Martin is in doubt as to his rights and obligations with respect to B.Hernandez, PSSM, GSM, the Grievance, and the \$1,575,000 he already paid in connection with the Trafficking Document. Accordingly, there is an actual, bona fide and justiciable controversy existing between the parties.

109. Pursuant to Chapter 86, Florida Statutes, this Court is empowered to declare the Trafficking Document illegal and/or unenforceable, as well as any relationship with B.Hernandez, PSSM or GSM that purportedly resulted therefrom, and to grant supplemental relief as required in connection with such declaration.

WHEREFORE, Martin demands judgment against B.Hernandez, PSSM and GSM declaring the Trafficking Document as well as any resulting relationships with B.Hernandez, PSSM and/or GSM therefrom void *ab initio* and of no legal effect; for money damages against B.Hernandez, PSSM and GSM, jointly and severally, as supplemental relief in the amount of \$1,575,000 paid by Martin, plus prejudgment and post-judgment interest, and costs; and granting such other and further relief as the Court may deem just and proper. Additionally, as any claims of PSSM or GSM arise from the Trafficking Document, Martin is entitled to an award of his attorneys' fees in connection with this Count pursuant to Florida Statutes section 57.105(7).

**Count III-Unjust Enrichment
(Against All Parties)**

110. Martin repeats and realleges paragraphs 1 through 95, and 102-108 above, as if fully set forth herein.

111. This is an equitable action for damages against Estrellas, Lazo, J.Hernandez, B.Hernandez, PSSM and GSM for unjust enrichment as a result of the illegal nature of the Trafficking Document and the actions taken thereunder or in relation thereto.

112. As described more fully above, after May 2011, Martin paid \$1,350,000 to an account supposedly belonging to Estrellas. Additionally, Martin paid \$225,000.00 to PSSM.

113. These amount were paid due to fear and intimidation, and not because Martin believed such amounts were legally owed.

114. Upon information and belief, the \$1,575,000 in funds remitted were shared by, at a minimum, Lazo, J.Hernandez and B.Hernandez, all of whom are principals or agents of Estrellas, PSSM and/or GSM.

115. By virtue of the illegal and unenforceable nature of the Trafficking Document, Martin should not have been required to pay such amounts.

116. Martin conferred a benefit onto the named parties by paying the \$1,575,000 to them, and which amount they could not lawfully collect.

117. Each of the named parties knowingly accepted such benefit and has wrongfully retained such benefit by failing and refusing to refund to Martin the amount each illegally collected. Under such circumstances, it would be inequitable for them to retain the benefits conferred.

118. Martin has no adequate legal remedy to recover the value of the amounts remitted.

WHEREFORE, Martin demands judgment against Estrellas, Lazo, J.Hernandez, B.Hernandez, PSSM and GSM, jointly and severally, for compensatory damages totaling \$1,575,000, prejudgment and post-judgment interest, and costs, and for any other and further relief deemed just and proper.

**Count IV – Money Had And Received
(Against All Parties)**

119. Martin repeats and realleges paragraphs 1 through 95, and 102-108 above, as if fully set forth herein.

120. By failing to return the respective portions of monies received by Estrellas, Lazo, J.Hernandez, B.Hernandez, PSSM and GSM, in connection with or arising out of the Trafficking Document, each has in his/its possession money belonging to Martin, which in equity and good conscience should be returned to Martin.

121. Thus, Estrellas, Lazo, J.Hernandez, B.Hernandez, PSSM and GSM have deprived Martin of the ownership of his money, although they have no legal or equitable right to any such money.

122. Consequently, under such circumstances, it would be unjust and inequitable for them to be permitted to retain the monies received.

123. Martin is entitled to a return of the monies totaling \$1,575,000 plus interest.

WHEREFORE, Martin demands judgment against Estrellas, Lazo, J.Hernandez, B.Hernandez, PSSM and GSM, jointly and severally, in the amount of \$1,575,000, plus pre-judgment and post-judgment interest, and costs incurred in connection with this action, and for such other and further relief as the Court deems just and proper.

**Count V- Civil Conspiracy
(Against All Parties)**

124. Martin repeats and realleges paragraphs 1 through 95, and 102-108 above, as if fully set forth herein.

125. Estrellas, Lazo, J. Hernandez and B. Hernandez are parties to a civil conspiracy involving, at a minimum, human trafficking, kidnapping and extortion.

126. Estrellas, Lazo, J. Hernandez and B. Hernandez conspired to conduct these unlawful acts or to attempt to conduct facially lawful acts by unlawful means.

127. Specifically, Estrellas, Lazo, J. Hernandez and B. Hernandez conspired to obtain millions of dollars not otherwise lawfully entitled to by trafficking, kidnapping, and then extorting Cuban baseball players who would have nevertheless ended up playing baseball in America for substantial salaries despite their nefarious efforts.

128. Estrellas, Lazo, J. Hernandez and B. Hernandez owed a general duty to Martin to protect him from (or not to subject him to) such illegal and harmful actions.

129. Estrellas, Lazo, J. Hernandez and B. Hernandez committed overt acts in furtherance of their conspiracy, including using Toledo to manipulate Martin to get him into Lazo's boat, holding Martin, his family and others hostage until such time as Martin was forced to sign the Trafficking Document and able to obtain the Rangers Contract, and sending demands, invoices and the like seeking to improperly collect the fruits of their illegal labors.

130. The conspiracy committed by Estrellas, Lazo, J. Hernandez and B. Hernandez and their respective overt acts have damaged Martin, including payment of \$1,575,000 not otherwise owed to any of them, and Martin having to incur substantial legal fees based upon the filing of this frivolous lawsuit.

131. B.Hernandez's role in the conspiracy was conducted within the course and scope of his employment (or agency relationships) with GSM and PSSM, and, accordingly, they are also liable for all acts committed in furtherance of the conspiracy.

WHEREFORE, Martin demands judgment against Estrellas, Lazo, J.Hernandez, B.Hernandez, GSM and PSSM, jointly and severally, in the amount of \$1,575,000, plus pre-judgment and post-judgment interest, plus the fees and costs incurred in connection with this action based upon their illegal actions, and for such other and further relief as the Court deems just and proper.

**Count VI- Civil Remedies for Criminal Practices
(Against All Parties)**

132. Martin repeats and realleges paragraphs 1 through 95, and 102-108 above as if fully set forth herein.

133. Estrellas, Lazo, J. Hernandez and B. Hernandez are parties to a civil conspiracy involving, at a minimum, human trafficking, kidnapping and extortion.

134. Estrellas, Lazo, J. Hernandez and B. Hernandez conspired to conduct these unlawful acts or to attempt to conduct facially lawful acts by unlawful means.

135. Specifically, Estrellas, Lazo, J. Hernandez and B. Hernandez conspired to obtain millions of dollars not otherwise lawfully entitled to by trafficking, kidnapping, and then extorting Cuban baseball players who would have nevertheless ended up playing baseball in America for substantial salaries despite their nefarious efforts.

136. B.Hernandez's role in the conspiracy was conducted within the course and scope of his employment (or agency relationships) with GSM and PSSM, and, accordingly, they are also liable for all acts committed in furtherance of the conspiracy.

137. Human trafficking and kidnapping are illegal activities under United States and Florida law, at a minimum, and are also defined as "criminal activity" in accordance with Florida Statutes section 772.102(1)(a)15.

138. Such criminal activity damaged Martin, at a minimum, in the amount of \$1,575,000.

139. Consequently, pursuant to Florida Statutes section 772.104(1), Martin is entitled to threefold the actual damages sustained as a result of the "criminal activity," plus attorneys' fees and costs.

140. WHEREFORE, Martin demands judgment against Estrellas, Lazo, J.Hernandez, and B.Hernandez, jointly and severally, in the amount of \$4,725,000, plus pre-judgment and post-judgment interest, plus the fees and costs incurred in connection with this action based upon their illegal actions, and for such other and further relief as the Court deems just and proper.

/s/ Paul H. Minoff

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CERTIFICATE OF SERVICE

I HEREBY CERTIFY that a true and correct copy of the foregoing was furnished via e-service this 8th day of January 2013, upon the following:

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